

GRANT OF RIGHT-OF-WAY

Instrument No. PENDING Montezuma County, CO

GRANT

Ute Mountain Ute Tribe ("Grantor") hereby grants and conveys to NTEC Clean Energy ("Grantee") a right-of-way and easement over, upon, and across the lands described below, for the purpose of constructing, operating, maintaining, and removing the facilities contemplated by this instrument, together with the right of ingress and egress.

DESCRIPTION OF RIGHT-OF-WAY

Legal Description: T34N R18W Sec 6, 7
Area: 210 acres
Corridor: As depicted on the plat/exhibit maintained in the record file.

TERM & CONSIDERATION

Effective Date: TBD
Expiration: TBD
Annual Compensation: \$63,000

This right-of-way is subject to BIA/BLM approval where the underlying lands are held in trust or federal status, and to renewal upon the terms then applicable.

CONDITIONS

- Grantee shall restore the surface to as near its original condition as practicable following construction.
- Grantee shall maintain the right-of-way and any facilities in a safe condition throughout the term.
- This grant is appurtenant to the permitted use and shall not be assigned except as permitted herein.

NOTES

230kV transmission ROW for solar interconnect. Awaiting tribal council + BIA approval.

GRANTOR - Ute Mountain Ute Tribe

GRANTEE - NTEC Clean Energy

Date: _____

Date: _____